

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Latrice Frazier	Team: Squad #1	CCRB Case #: 201905229	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/06/2019 11:15 PM	Location of Incident: 1347 Prospect Avenue	Precinct: 42	18 Mo. SOL 12/6/2020	EO SOL 7/23/2021	
Date/Time CV Reported Thu, 06/06/2019 11:24 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/17/2019 10:52 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jorge Bencosme	20173	963872	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Will Rodriguez	19485	964254	042 PCT
2. SGT Ashleigh Sofia	05468	941249	042 PCT
3. POM Alexander Ponceano	10948	962023	042 PCT
4. POM Christophe Davis	00188	938322	042 PCT
5. POM James Hasper	23680	923935	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jorge Bencosme	Force: Police Officer Jorge Bencosme used physical force against § 87(2)(b)	

Case Summary

On June 6, 2019, § 87(2)(b) filed the following complaint with the IAB command center via telephone, on behalf of his father, § 87(2)(b). The CCRB received the complaint on June 17, 2019.

On June 6, 2019, § 87(2)(b)'s car was being towed in the vicinity of 1347 Prospect Avenue in the Bronx when PO Jorge Bencosme and PO Alexander Ponceano, of the 42nd Precinct, asked him to leave. When § 87(2)(b) did not leave PO Bencosme pushed him in the middle of his chest (**Allegation A: Force - § 87(2)(g)**).

Body-worn camera (BWC) footage captured this incident (**Board Review 01, and 15-23**).

Findings and Recommendations

Allegation (A) Force: Police Officer Jorge Bencosme used physical force against § 87(2)(b)

§ 87(2)(b) testified that the tow truck was parked between the bike lane and the street, and his vehicle was parked in the parking lane near the sidewalk. § 87(2)(b) approached the tow truck driver and asked where he was taking his car. The tow truck driver stated he would give § 87(2)(b) a card containing that information after the car was on the tow truck. § 87(2)(b) stood behind the tow truck near the street as his car was in the process of being towed from a parking space when PO Bencosme and PO Ponceano asked him to leave. § 87(2)(b) told PO Bencosme and PO Ponceano that he was waiting on the tow truck driver to give him a card. PO Bencosme walked toward § 87(2)(b) and pushed him in the middle of his chest with his forearm and elbow, causing § 87(2)(b) to fall in-between the parking space and sidewalk (**Board Review 02**).

§ 87(2)(b) § 87(2)(b)'s § 87(2)(b)-old daughter, testified that she stood approximately one foot to the right of her father and did not remember seeing PO Bencosme touch § 87(2)(b) but remembered she saw her father fall to the ground on his back near the sidewalk (**Board Review 03**). § 87(2)(b) a neighbor of § 87(2)(b) looked out of his apartment window located in front of the incident. § 87(2)(b) testified that when § 87(2)(b)'s car was being towed, officers quietly asked § 87(2)(b) to get out of the street so he did not get hit by a car, and § 87(2)(b) refused. Two officers approached § 87(2)(b) and grabbed his hands. § 87(2)(b) yelled out, "don't touch me," fell to the ground on his own accord, and yelled out to his kids to call an ambulance (**Board Review 04**).

§ 87(2)(b) § 87(2)(b), was outside and saw § 87(2)(b) was upset that his car was being towed. § 87(2)(b) approached § 87(2)(b) and attempted to calm him down by explaining that § 87(2)(b) would be able to pay for his car to get out, but the officers would have to tow his car, which did not calm § 87(2)(b) § 87(2)(b) stood near § 87(2)(b) and his children when PO Bencosme asked § 87(2)(b) to step away several times, and § 87(2)(b) did not listen and continued to walk towards PO Bencosme. PO Bencosme then grabbed § 87(2)(b) by the bicep and § 87(2)(b) pulled away. § 87(2)(b) lost balance and fell to the ground, landing on his back near the sidewalk between two cars and began yelling that he was in pain and to call the ambulance. § 87(2)(b) did not see PO Bencosme push or force § 87(2)(b) to the ground (**Board Review 05**).

The physical contact was captured the first eight seconds of PO Bencosme's BWC video (**Board Review 01**). Audio was not captured until 30 seconds into the video. The events before the physical contact with § 87(2)(b) were not captured. The footage reflected that § 87(2)(b) stood in the street approximately 1 foot from PO Bencosme, whose back was facing the street near oncoming traffic. Within the eight seconds, PO Bencosme's left hand extended onto the chest of § 87(2)(b) and right hand on

his left bicep. § 87(2)(b) then in an upward motion, pulled his left arm away from PO Bencosme and turned his body to the left away from PO Bencosme. Then PO Bencosme grabbed § 87(2)(b)'s left bicep with both hands and § 87(2)(b) disappeared out of view of the camera. The video did not capture § 87(2)(b)'s fall.

PO Bencosme testified that multiple times he and other officers asked § 87(2)(b) to stand on the sidewalk out of the flow of traffic for § 87(2)(b)s, the tow truck driver, and the officers' safety and that he would be able to pick up his car in the morning. PO Bencosme did not see § 87(2)(b) speak to the tow truck driver. § 87(2)(b) paced back and forth behind the vehicle that was being towed from its parking space. PO Bencosme asked § 87(2)(b) to get onto the sidewalk, but § 87(2)(b) did not comply and began to walk towards PO Bencosme, who was standing in the street. PO Bencosme then extended his left arm onto § 87(2)(b)'s chest and grabbed § 87(2)(b)'s left bicep. PO Bencosme stated he did not push § 87(2)(b) but extended his arm to signal for § 87(2)(b) to move back. As § 87(2)(b) was taller than him and had gotten close to him while his back faced the street, PO Bencosme feared § 87(2)(b) might push him into ongoing traffic. § 87(2)(b) then pulled his arm away from PO Bencosme. In response, PO Bencosme grabbed § 87(2)(b)'s left bicep, took a half step, and § 87(2)(b) fell onto the hood of the car parked behind him and slid himself onto the ground near the front right tire. PO Bencosme let go of § 87(2)(b) once he began to fall onto the vehicle (**Board Review 06**).

PO Ponceano testified that approximately five to six times, he and PO Bencosme asked § 87(2)(b) to get out of the street and stand on the sidewalk, to which § 87(2)(b) did not comply. § 87(2)(b) stood behind the vehicle being towed and continued to say that they were not going to tow his vehicle. PO Ponceano stated he was concerned with § 87(2)(b) being in the way of oncoming traffic and wanted the tow truck driver to complete the tow. PO Bencosme then grabbed § 87(2)(b)'s arm, to which PO Ponceano described as a hold and not a full grab to escort him to the sidewalk. PO Ponceano observed § 87(2)(b) toss his arms in the air as PO Bencosme grabbed his arm. § 87(2)(b) then sat onto the front-side quarter panel of the car parked behind the vehicle that was being towed, rolled off the hood of the car, and lowered himself to the ground in front of the vehicle. § 87(2)(b) landed on his back and complained of back pain. PO Bencosme let go of § 87(2)(b)'s arm when § 87(2)(b) backed into the vehicle and did not touch him further (**Board Review 07**).

According to Patrol Guide Procedure No: 221-02, de-escalation tactics are to be used to stabilize a situation and reduce the immediacy of the threat to gain voluntary compliance of a subject and reduce or eliminate the necessity to use force (**Board Review 08**).

According to Patrol Guide Procedure No: 221-01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (**Board Review 09**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 10**).

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 11**).
- PO Jorge Bencosme has been a member of service for two years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 2, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (**Board Review 12**).
- An OCA search could not be performed for § 87(2)(b) without a date of birth (**Board Review 13**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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